

# INNOVEX RESOURCE GROUP LIMITED

## INNOVEX RESOURCE GROUP LIMITED

a company incorporated in England and Wales under company number **15975820**  
and whose  
registered office is at 33 Forsythia Drive, Cardiff, Wales, CF23 7HP, United Kingdom  
("the Employment Agency");

## TERMS OF BUSINESS

### INTRODUCTION OF CANDIDATES TO CLIENTS FOR DIRECT EMPLOYMENT/ENGAGEMENT

#### 1. DEFINITIONS

1.1. In these Terms of Business, the following definitions apply:

##### **"Applicant"**

means the person presented by the Agency to the Client for an Engagement including any officer or employee of the Applicant if the Applicant is a limited company and members of the Agency's own staff;

##### **"Client"**

means the person; firm, organization or corporate body together with any subsidiary or associated Company as defined by the Companies Act 1985 to which the Applicant is introduced;

##### **"Agency"**

means Innovex Resource Group Limited, 33 Forsythia Drive, Cardiff, Wales, CF23 7HP, United Kingdom.

##### **"Engagement"**

Means the engagement, employment or use of the Applicant by the Client or any third party on a permanent or temporary basis, whether under a contract of service or for services; under an agency, license, franchise or partnership agreement; or any other engagement; directly or through a limited company of which the Applicant is an officer or employee

##### **"Introduction"**

##### **Means:**

- (i) The Client's interview of an Applicant in person or by telephone, following the Client's instruction to the Agency to search for an Applicant; or

- (ii) The passing to the Client of a curriculum vitae or information which identifies the Applicant; and which leads to an Engagement of that Applicant.

## **“Remuneration”**

Includes base salary or fees, guaranteed and/or expected bonus and commission earnings, allowances, inducement payments, the benefit of a company car and all other payments and taxable (and, where applicable, non-taxable) emoluments payable to or receivable by the Applicant for services rendered to or on behalf of the Client.

- 1.2. Unless the context requires otherwise, references to the singular include the plural.
- 1.3. The headings contained in these Terms of Business are for convenience only and do not affect their interpretation.

## **2. THE CONTRACT**

- 2.1. These Terms establish the contract between the Agency and the Client and are considered to be accepted by the Client by virtue of an Introduction to, or the Engagement of an Applicant or the passing of any information about the Applicant to any third party following an Introduction.
- 2.2. This Agreement does not need to be signed for it to become binding upon the parties to it. Furthermore, these Terms of Business can be electronically sent to the Client to deliver the Terms of Business to the Client.
- 2.3. These terms contain the entire agreement between the parties and unless otherwise agreed in writing by a director of the Agency, these Terms of Business prevail over any other terms of business or purchase conditions put forward by the Client.
- 2.4. No variation or alteration to these Terms shall be valid unless the details of such variation are agreed between the Agency and the Client and are set out in writing and a copy of the varied terms is given to the Client stating the date on or after which such varied terms shall apply.

## **3. NOTIFICATION AND FEES**

- 3.1. The Client Agrees:
- To notify the Agency immediately of any offer of an Engagement which it makes to the Applicant;
  - To notify the Agency immediately that its offer of an Engagement to the Applicant has been accepted and to provide details of the Remuneration to the Agency; and
  - To pay the Agency's fee within 7 days of the date of invoice.

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- 3.2. Except in the circumstances set out in clause 3.3 and 6.1 below, no fee is incurred by the Client until the Applicant commences the Engagement] when the Agency will render an invoice to the Client for its fees.
- 3.3. The Agency may require the Client to make a deposit or prepay all of the Agency fees before the Agency supplies staff to the Client. Once the Client has paid the Agency or has made a prepayment to the Agency the Agency shall provide staff by the Terms of Business of the Agency.
- 3.4. The fee payable to the Agency by the Client for an Introduction resulting in an Engagement is calculated in accordance with the Fee Structure detailed below on the Remuneration applicable during the first 12 months of the Engagement. VAT will be charged on the fee if applicable.

| Salary Range            | Percentage                |
|-------------------------|---------------------------|
| Management Positions    | 3000 pounds per placement |
| Support Workers         | 900 pounds                |
| Team Leader             | 1100 pounds               |
| Senior Supporting staff | 7%                        |

- 3.5. In the event that the Engagement is for a fixed term of less than 12 months, the fee in clause 3.4 will apply pro-rata. If the Engagement is extended beyond the initial fixed term or if the Client re-engages the Applicant within 6 calendar months from the date of termination of the first Engagement the Client shall be liable to pay a further fee based on the additional Remuneration applicable for the period of Engagement following the initial fixed term up to the termination of the second Engagement or the first anniversary of its commencement, whichever is the sooner. Notwithstanding the above a full fee calculated in accordance with clause 3.4 above becomes payable.
- 3.6. The responsibility for paying the Agency's fees lies solely with the Client as defined under this contract. If the Client wishes to involve an external organization in the payment of the Agency's fees, then the said the external organization would only be liable under a separate contract. If a third-party organization is not bound by a separate contract, the responsibility of payment would lie with the Client.
- 3.7. Any queries on an invoice must be specifically addressed in writing to the Agency within 7 days from the date of the invoice, failing which the Client is

deemed to have accepted the full value of the invoice and will be liable for the full amount.

- 3.8. The Agency reserves the right to charge interest on any overdue invoiced amounts at the rate of 10% per annum from the due date until the date of payment.
- 3.9. If the ownership of the Client changes for whatsoever reason the Owners, Partners, or Directors of the Client who agreed to these Terms of Business at the time of the Introduction by the Agency will be personally liable for any matters under this contract. outstanding
- 3.10. The Client agrees to pay any additional costs incurred by the Agency for the collection of the debt for late or not-payment.
- 3.11. If the Client subsequently engages or re-engages the Applicant within the period of 6 calendar months from the date of termination of the Engagement or withdrawal of the offer, a full fee calculated in accordance with clause 3.4 above becomes payable.

## 4. REFUNDS

4.1. In order to qualify for the following refund, the Client must pay the Agency's fee within 7 days of the date of invoice and must notify the Agency in writing of the termination of the Engagement within 7 days of its termination.

4.1. Refunds will be issued by the Agency in the form of a credit note. Cash refunds will be offered once agreed in writing by the Agency. Credit notes would be deducted against the next placement invoice. Credit notes are only valid for three months unless agreed in writing by the Agency.

4.2. If the Engagement terminates before the expiry of 12 weeks from the commencement of the Engagement (except where the Applicant is made redundant), the fee will be refunded in accordance with the accompanying Scale of Refund set out below:

| Week in which Applicant Leaves | % of Introduction Fee Refunded |
|--------------------------------|--------------------------------|
| 0 to 4 weeks                   | 75%                            |
| 4 to 8 weeks                   | 50%                            |
| 8 to 12 weeks                  | 25%                            |

4.3. In circumstances where clause 3.6 applies, the full fee stated in clause 3.4 is payable, and there shall be no entitlement to a refund.

4.4. If the candidate dies before completing the rebate period, the Agency will not issue any refund.

## 5. CANCELLATION FEE

5.1. If, after an offer of Engagement has been made to the Applicant, the Client decides for any reason to withdraw it, the Client shall be liable to pay the Agency a minimum fee of £500.

## 6. INTRODUCTIONS

6.1. Introductions of Applicants are confidential. The disclosure by the Client to a third party of any details regarding an Applicant introduced by the Agency which results in an Engagement with that third party within 6 months of the Introduction renders the Client liable to payment of the Agency's fee as set out in clause 3.4 with no entitlement to any refund.

6.2. An introduction fee calculated in accordance with clause 3.4 will be charged in relation to any Applicant engaged as a consequence of or resulting from an introduction by or through the Agency, whether direct or indirect, within 4 months from the date of the Agency's Introduction.

6.3. Where the amount of the actual Remuneration is not known the Agency will charge a fee calculated in accordance with clause 3.4 on the minimum level of remuneration applicable for the position in which the Applicant has been engaged with regard to any information supplied to the Agency by the Client and/or comparable positions in the market generally for such positions.

6.4. The Client agrees that any attempt to directly approach, solicit, engage, employ, or contract with any Applicant introduced by the Agency, whether directly or indirectly and without the Agency's written consent, shall constitute a breach of these Terms of Business.

In such circumstances, the Client shall become liable to pay the Agency a fee equal to double the original placement fee or agreed programme cost, payable immediately upon demand by the Agency.

## 7. SUITABILITY AND REFERENCES

7.1. The Agency endeavors to ensure the suitability of any Applicant introduced to the Client by obtaining confirmation of the Applicant's identity; that the Applicant has the experience, training, qualifications and any authorization which the Client considers necessary or which may be required by law or by any professional body; and that the Applicant is willing to work to work in the position which the Client seeks to fill.

7.2. At the same time as proposing an Applicant to the Client the Agency shall inform the Client of such matters in clause 9.1 as they have obtained confirmation of. Where such information is not given in paper form or by electronic means it shall

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be confirmed by such means by the end of the third business day (excluding Saturday, Sunday and any public or Bank holiday) following save where the Applicant is being proposed for a position which is the same as one in which the Applicant has worked within the previous five business days and such information has already been given to the Client.

- 7.3. The Agency endeavors to take all such steps as are reasonably practicable to ensure that the Client and Applicant are aware of any requirements imposed by law or any professional body to enable the Applicant to work in the position which the Client seeks to fill.
- 7.4. The Agency endeavors to take all such steps as are reasonably practicable to ensure that it would not be detrimental to the interests of either the Client or the Applicant for the Applicant to work in the position which the Client seeks to fill.
- 7.5. Notwithstanding clauses 7.1, 7.2, 7.3 and 7.4 above the Client shall satisfy itself as to the suitability of the Applicant and the Client shall take up any references provided by the Applicant to it or the Agency before engaging such Applicant. The Client is responsible for obtaining work permits and/or such other permission to work as may be required, for the arrangement of medical examinations and/or investigations into the medical history of any Applicant, and satisfying any medical and other requirements, qualifications or permission required by law of the country in which the Applicant is engaged to work.
- 7.6. To enable the Agency to comply with its obligations under clauses 7.1, 7.2, 7.3 and 7.4 above the Client undertakes to provide to the Agency details of the position which the Client seeks to fill, including the type of work that the Applicant would be required to do; the location and hours of work; the experience, training, qualifications and any authorization which the Client considers necessary or which are required by law or any professional body for the Applicant to possess in order to work in the position; and any risks to health or safety known to the Client and what steps the Client has taken to prevent or control such risks. In addition the Client shall provide details of the date the Client requires the Applicant to commence, the duration or likely duration of the work; the minimum rate of remuneration, expenses and any other benefits that would be offered; the intervals of payment of remuneration and the length of notice that the Applicant would be entitled to give and receive to terminate the employment with the Client.

## 8. SPECIAL SITUATIONS

- 8.1. Where the Applicant is required by law, or any professional body to have any qualifications or authorisations to work in the position which the Client seeks to fill; or the work involves caring for or attending one or more persons under the



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age of eighteen, or any person who by reason of age, infirmity or who is otherwise in need of care or attention, the Agency will take all reasonably practicable steps to obtain and offer to provide copies of any relevant qualifications or authorisations of the Applicant, two references from persons not related to the Applicant who have agreed that the references they provide may be disclosed to the Client and has taken all reasonably practicable steps to confirm that the Applicant is suitable for the position. If the Agency is unable to do any of the above it shall inform the Client of the steps it has taken to obtain this information in any event.

## 9. LIABILITY

9.1. The Agency shall not be liable under any circumstances for any loss, expense, damage, delay, costs or compensation (whether direct, indirect or consequential) which may be suffered or incurred by the Client arising from or in any way connected with the Agency seeking an Applicant for the Client or from the Introduction to or Engagement of any Applicant by the Client or from the failure of the Agency to introduce any Applicant. For the avoidance of doubt, the Agency does not exclude liability for death or personal injury arising from its own negligence.

## 10. LAW

10.1. These Terms are governed by the law of England & Wales and are subject to the exclusive jurisdiction of the Courts of England & Wales.

### Terms of business agreement

By signing this document, I the "Client" agree for Agency Innovex Resource Group Limited(Company Registration no: **15975820**) to supply us with candidates in accordance with terms above.

Care Home/ Group/Agency Name

Signed By Manager Care Home/Group/Agency

Care Home/Group Name/Agency Name

Address: \_\_\_\_\_

Contact No: \_\_\_\_\_

Agency Signature

A handwritten signature in dark ink, appearing to read "Haider Zaman Syed".

Signed By Procurement Specialist  
Haider Zaman Syed

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